

Translated from Bangla

Government of the People's Republic of Bangladesh

Electoral System Reforms Commission

Recommendations

(Translated into English from Bangla)

15 January 2025

Electoral Reforms are the first steps towards enabling free, fair, credible elections, which are the means of gaining the consent of the people, a very fundamental feature of a democratic polity. Therefore, we, the members of the Electoral System Reform Commission, have undertaken our responsibility of proposing reforms of our electoral system with utmost seriousness and dedication. The following recommendations are not only based on extensive review of the relevant legal framework and deep analysis of all 12 previous elections of this country but is also reflective of people's wishes which has been obtained through extensive stakeholder consultations, surveys and direct public feedback. The recommendations also represent the extensive expertise and experiences of the Commission members in elections and electoral reforms. As we complete this task, we once again pay homage to the sacrifices of those who were injured and killed in the mass uprising in 2024. We would like to express our sincere thanks to all those who have helped in various ways in conducting the Commission's activities and in formulating our recommendations.

1.0 Election Commission

1.1 Formation of the Election Commission

The Electoral System Reform Commission has drafted an Election Commission Law. The purpose of this proposed law is to ensure the appointment of qualified and reputable individuals as Chief Election Commissioners and other Commissioners in a transparent manner, based on political consensus and meaningful civil society participation. The law also defines the duties, powers, responsibilities, and the means of holding the Commissioners accountable (the draft is attached in annex 1 of the full report)

[**Alternative Proposal:** Appointments to all constitutional institutions, such as the Election Commission, to be made through the creation of a permanent **National Constitutional Council (NCC)**. This will require constitutional amendment.]

1.2 Powers of the Election Commission

(a) The Commission to have, subject to inquiry, the authority to suspend or cancel elections and authorize re-elections when there are serious allegations of violation of electoral laws and rules.

(b) The Commission to have the full responsibility for identifying and appointing the Secretary of the Election Commission.

(c) A legal requirement to be put in place such that, during election period, any decision undertaken by any part of the executive branch of the government that could affect election will have to be explicitly vetted by the Election Commission.

(d) A legal requirement to be put in effect such that before an election, if the Election Commission as a body unanimously comes to the conclusion that holding such election may risk undermining democratic principles (e.g., elections of 2014, 2018 and 2024), as enshrined in the very framework of the country's

Constitution, then the Commission may, in writing and with clear justifications, request an opinion, sent through the Office of the President, of the Appellate Division of the Supreme Court regarding postponing the election for up to 90 days.

1.3 Responsibilities of the Election Commission

(a) Within 48 hours of the national election, and before publishing the results in the national Gazette, the Commission to issue a public declaration certifying the integrity, credibility and the acceptability of the said election.

(b) If a contesting political party is aggrieved by the Commission's certification of an election to be free, fair and credible, it will have 48 hours to lodge a complaint with the National Constitutional Council (NCC) or the Appellate Division of the Supreme Court. The Council or the Court to settle the complaint within 7 working days.

(c) The Commission to be made fully responsible for conducting local government elections.

(d) The Commission to be responsible for voter education, awareness, and research activities, and will work with students and civil society organizations for these efforts.

(e) The Commission to organize 'candidate forums' involving voter-candidate face-to-face events in each constituency to foster engagement between voters and candidates.

(f) The Commission to be responsible for providing protection to candidates and their electoral and polling agents during election.

(g) Subject to investigation, the Commission to have the authority to deregister political parties alleged to have been registered in 2023 by the Awal Commission under partisan influence.

1.4 Responsibility and Accountability of the Election Commission

(a) All legal, financial, and administrative matters of the Election Commission to be submitted to a multiparty Special Parliamentary Committee of the proposed Upper House (or, if not established, then the existing Parliament) rather than to government Ministries as is currently the case. The Special Parliamentary Committee to examine the appropriateness of the requests and send the request to the appropriate authorities for expeditious disposal.

(b) Allegations of misconduct or states of incapacity against sitting members of the Election Commission to be brought by the President, under the provisions of Articles 118 and 96 of the Constitution, for investigation and recommendations for remedy by the Supreme Judicial Council.

(c) Allegations of failure to meet constitutional responsibilities or violation of oath of office against members of the Election Commission, after they leave office, to be investigated by proposed Special Parliamentary Committee and report their findings to the President for necessary action, if any.

(d) Section 90 of *The Representation of the People Order, 1972* to be amended to remove the statute of limitation for filing cases related to electoral offences.

1.5 Appointment of Returning Officer/Assistant Returning Officer

The Election Commission is to appoint as far as possible its own officers as Returning and Assistant Returning Officers.

1.6 Expenditure of the Election Commission

Allowances for training, for law enforcement agencies, and for magistrates during elections, to be re-evaluated, re-adjusted and where necessary, abolished.

(Note: In 1973, the Election Commission's, i.e government's election-related expenditures, were approximately 3 crore taka. By 2024, this amount had escalated to 1,927 crore taka.)

1.7 Working Procedures of the Election Commission

(a) Excluding routine daily activities, all decisions related to appointments, promotions, and transfers of officers and employees, to be taken either unanimously or through majority vote.

(b) The Commission to jointly decide on all election-related activities and procedures.

1.8 Human Resources of the Election Commission

(a) An international audit firm to be hired to undertake a detailed organizational and human resource audit of the Election Commission's secretariat and its sub-national offices and recommend changes in their organogram and human resources plan. (Currently, the Election Commission employs more than 5,000 officers and staff.)

(b) A separate Electoral Service for the officers and employees of the Election Commission to be introduced.

2.0 Caretaker government system

(a) Caretaker government tenure to be extended to four months, if necessary, to allow both local and parliamentary elections to be held within this period.

(b) The caretaker government to be given powers to undertake such regulatory reforms and affect administrative changes that it deems necessary to ensure the conduct of free, fair, and credible elections.

(c) Regulations to be put in effect for the permanent 'National Constitutional Council' to appoint the head of the caretaker government and 20 other advisors.

(d) If the recommendation submitted by the Constitution Reform Commission of putting in place a National Constitutional Council is not agreed upon, an outline of the caretaker government to be formulated by forming a high-level committee comprising representatives of all political parties, experts, civil society and other important stakeholders of the society; the ruling political party will be responsible for getting it approved by the parliament and implementing it.

3.0 President and Prime Minister

3.1 President

- (a) A non-partisan, qualified, and reputable candidate to be elected as President.
- (b) The President to be elected by an electoral college comprising of members from both houses of the Parliament and all elected local government representatives.

3.2 Prime Minister

- (a) Prime Minister's tenure to be limited to a maximum of two terms (Constitutional amendment will be required).
- (b) The Prime Minister, after maximum two terms, to be disqualified from contesting in presidential election (Constitution amendment will be required).
- (c) Provisions to be made to prevent the same person from simultaneously holding positions of the party leader, the prime minister and the leader of the house.

4.0 Election of the Upper House of Parliament

- (a) An Upper House of Parliament with 100 seats to be established and populated using the system of proportional representation (Constitutional amendment is required).
- (b) Of the total number of seats allocated to each political party in the Upper House, 50% of these to be elected from party members, while the remaining 50% to be elected from civil society, educators, philanthropists, workers, activists, cultural figures, and marginalized communities. Such an election to take place from an 'open list' to be submitted by all parties to be Election Commission in the pre-election period.
- (c) Of the party and non-party members combined, at least 30% to be women.
- (d) To get a share of the seats of the upper house, a political party will have to receive a minimum of the 3% of the votes of the lower house.
- (e) Minimum age for Upper House members to be 35 years and minimum educational qualification to be bachelor's degree.
- (f) Other qualifications and disqualifications for the members of the upper house to be like those of the Lower House.
- (g) A new law to be enacted to govern the salaries, allowances or other benefits and entitlements for the members of the upper house
- (h) As per article 78 (5) of the Constitution, a law to be enacted to determine the privileges of the parliamentary committees and their members.
- (i) The position of 'Deputy Speaker' to be given to the opposition.

5.0 Delimitation of Parliamentary Constituencies

- (a) Boundaries of all parliamentary constituencies to be redrawn, based on the proposed amendments of the law drafted by the Reform Commission, ensuring alignment with internationally recognized principles of boundary delimitation.
- (b) A special committee comprising relevant experts to be formed with the help of the Election Commission to redraw boundaries of parliamentary constituencies for the coming election.
- (c) A separate, independent boundary delimitation authority to be established in the future to manage delimitation of constituencies.

6.0 Registration of Political Parties

- (a) To ease the registration of new political parties, the present requirement reduced to having party offices in only 10% of the districts and in 5% of upazila/police stations and the new party aspiring registration to have a minimum of only 5,000 initial members at the time of registration.
- (b) Each political party, to publish the list of their members on the website and updated at least once a year.
- (c) Those who are disqualified to be members of Parliament, under section 12 of the RPO, will be ineligible to be a general member/committee member of any registered political party.
- (d) Each committee, from local to national, of political parties to be elected through secret ballots by the general members of the party.
- (e) For each constituency, party members to elect a panel of three candidates, from which the central Nomination Board of the party will nominate one candidate to contest from the relevant constituency.
- (f) Each party member to pay a minimum of BDT 100 as membership fee. In addition to membership fees, parties to be allowed to receive from well-wishers, through banking channels, up to one-time maximum donations of Tk. 50 lakh per person; all such donations to be included in the tax returns of the donor.
- (g) Political party funds to be spent transparently and audited accounts of parties to be made public and submitted to the Election Commission, which will have the authority to scrutinize such accounts and publish them in its website.
- (h) Registered political parties to be brought under the *Right to Information Act, 2009*.
- (i) Political parties to be prohibited from having associated and affiliated bodies of students, teachers, and laborers in any name.
- (g) Political parties are to be prohibited from having foreign branches in the same or any other name.
- (k) A minimum of three years of party membership to be made mandatory for individuals to be eligible to receive party nominations in parliamentary elections.
- (l) Political Party registration to be renewed every five years.
- (m) Political parties that do not participate in two consecutive elections are not to be de-registered.

7.0 National Identity Card and Voter List

7.1 National Identity Card Management

- (a) National Identity Registration Act 2023, that transferred the responsibility of NID management to the Ministry of Home Affairs, to be immediately repealed.

- (b)** National Identity Registration Act 2010 to be reinstated with necessary amendments to provide a legal foundation for a modern identity system, as recommended in the Electoral System Reform Commission. This will ensure that every citizen owns and has full control over their identity information.
- (c)** The existing Standard Operating Procedures (SOPs) related to national identity cards to be reviewed to eliminate all forms of mismanagement, harassment, and irregularities, thereby making the process more citizen-friendly.
- (d)** Necessary measures to be initiated immediately to provide updated photo-enabled NID smart cards to all citizens included in the voter list, so that these smart cards can be used for voter identification.
- (e)** In light of widespread media reports alleging that sensitive identity information of millions of Bangladeshi citizens have been leaked and is being sold or distributed on various websites and messaging platforms, an independent investigation to be conducted immediately to thoroughly analyze the scope, underlying causes, impacts, and consequences of this critical data breach. Those responsible to be held accountable and punished in accordance with laws.
- (f)** Investigation and urgent action to be undertaken regarding recent allegations against a private businesses having access to National Identity Card database.
- (g)** In addition to the ongoing activities of issuing National identity cards to Bangladeshi citizens aged 16 years or older, a future plan to be developed for an identity registration program for children aged 10 years or older.
- (h)** To streamline all NID-related services nationwide and ensure uninterrupted operation, upgrades, maintenance, and security of the country's largest national database, the National Identity Registration Wing to be replaced in the future by an independent statutory commission named the "National Citizen Data Commission" This authority to oversee the registration of national identities of Bangladeshi citizen as well as the creation, maintenance and distribution of national identity cards. An international audit firm to be engaged to assess and recommend the organizational structure and manpower requirements of the proposed new authority.
- (i)** In future the proposed National Citizen Data Commission to expand its scope of activities by bringing several existing services, such as Birth and Death Registration Information System (BDRIS) and Civil Registration and Vital Statistics (CRVS)¹, under the proposed commission.
- (j)** The entire existing NID system—including data centers, hardware, software/web applications, databases, and credentials—to be transferred from the current vendor/department to the proposed National Citizen Data Commission. A comprehensive transition plan to be implemented for the proposed modern identity system.

7.2 Identity and Identity System

- (a)** National identity card to be converted into a digital (virtual) version. This process to begin by converting existing NID cards into a standardized digital format using the Self-Sovereign Identity (SSI)-based system proposed in the Electoral Reform Commission's report. The first step in this direction must be to transform current NID system into an SSI-based identity system.
- (b)** The next step in the proposed SSI-based identity system to design and develop it using a standardized SSI technology stack. At the same time, necessary trust framework, governance framework, legal framework, and application ecosystem to be established.
- (c)** An SSI wallet for various smartphone platforms as part of the SSI-based identity system to be developed. The design and development of this wallet are to prioritize security and privacy. Additionally, a solution to be developed for feature phones to accommodate users without smartphones in the future.

¹ These services are used for the registration of births, deaths, marriages, divorces and other vital events of every citizen in the country.

- (d) Security of the proposed system and its sub-components to be ensured, including the SSI wallet, by conducting a security audit through globally recognized security audit firms.
- (e) Once the SSI-based solution is ready, existing government and private online services to be transformed to fully leverage the system's security and privacy features. To facilitate this, an identity standardization framework based on international best practices to be established, ensuring interoperability both within the country and with other countries globally.
- (f) Proposed system to be rigorously tested after development, including testing each complex and interconnected sub-component individually.
- (g) Appropriate personal data protection and privacy laws to be enacted alongside the implementation of the national identity system. These laws to serve as safeguards against identity or personal information-related personal or institutional misuse within the country.

7.3 Updating the Voter List

- (a) All discrepancies, including the "gender gap," to be eliminated through a door-to-door verification and updating process of the voter list.
- (b) The Voter List Act to be amended to include individuals who turn 18 before the announcement of the election schedule.

8.0 Fair and Impartial Parliamentary Elections

8.1 Eligibilities and Ineligibilities of Candidates

- (a) Habitual defaulters of loans and bills to be made ineligible as candidates to run for Parliament. A loan defaulter must pay off all loans and interests completely at least six months prior to filing for nomination as candidate for Parliament. Requirements to be put in place to make anyone ineligible to remain as a member of Parliament if he or she becomes a loan defaulter after the election.
- (b) Persons declared fugitive by any court of law to be barred from becoming candidates.
- (c) Persons indicted in criminal cases on bail must attach certified copies of bail grant order by relevant court.
- (d) Executives of private organizations to contest Parliament elections only after three years of their retirement.
- (e) Individuals convicted of offense involving moral turpitude, as per Article 66 (2)(d) of the Constitution, to be disqualified as candidate in parliamentary elections starting from the date of their conviction.
- (f) Individuals convicted under the International Criminal Tribunal (ICT) Act to be disqualified as candidate in parliamentary elections from the date of their conviction.
- (g) The ICT Act and the RPO to be amended to make those who committed crime against humanity disqualified to be members of Parliament.
- (h) Elected representatives of local government institutions to resign before standing for parliamentary elections.
- (i) In Parliament elections, 10% of nominations to be given to the youth, religious and ethnic minorities, and persons with disabilities.

- (j) Independent candidates need to submit the signatures of only 500 voters instead of 1% of all voters. Such voter consent may be provided through a single or joint affidavit.
- (k) The provision allowing candidates to run for election from more than one seats to be abolished.
- (l) If a court annuls the election of an individual for false information or concealment of information in his/her affidavits, the individual to be disqualified from contesting in any future elections.

8.2 Nomination Papers

- (a) All candidates to be required to submit their nomination papers in person, except for those who are in legal custody.
- (b) The election schedule to be re-adjusted for allocating longer time period for scrutinizing affidavits, completing the appeal process and finalizing the candidature, and less time for campaigning to reduce candidates' election expenses.
- (c) The Election Commission's decision regarding candidacies to be absolute and final; and the court's intervention to be limited to only cases involving "quorum non juris" or "malice in law."
- (d) Candidates' nomination papers should include copies of their income tax returns for the past five years.

8.3 Affidavit

- (a) Information on assets held within and outside the country to be added to the affidavit. Affidavits and income tax returns of the candidates to be circulated so that voters can take informed decisions regarding candidates.
- (b) Any misinformation or deliberate omission of information in the affidavits and tax returns to result in disqualification to be a candidate for Parliament or remain as a member of Parliament.
- (c) Political party Presidents, General Secretary, or persons of similar rank to submit a signed affidavit together with their candidates' nomination papers, clearly affirming that (i) there has been no 'nomination based financial transaction' (nomination trade) related to this particular candidate, and (ii) the proposed candidate has been selected by a panel of party representatives from the respective constituency.
- (d) The election of an individual may be annulled, if at any point the Election Commission, upon scrutiny of the submitted affidavit, finds evidence of information concealment or of misinformation.

8.4 Election System

- (a) The provisions for the use of Electronic Voting Machines (EVM) in elections to be abolished.
- (b) For the purpose of elections, the defense forces to be included in the definition of law enforcement agencies.
- (c) Re-elections to be held in constituencies where less than 40% of the electorate have cast their vote.
- (d) To prevent uncontested candidates from winning elections and to encourage political parties to nominate competent candidates, a "no-vote" provision to be introduced in the ballots of parliamentary elections. Re-polling will take place in those constituencies where "no-vote" receive highest number of votes with the condition that no candidate from the annulled election may contest in the re-election.

8.5 Electoral Code of Conduct

- (a) Banners, arches, and posters to be banned during campaigning. Instead, leaflets, voter-candidate face-to-face meetings and newspaper advertisements to be allowed. All parties be given equal opportunities for campaigning using public media.
- (b) Campaigning on social media to abide by the proposed social media code of conduct, aligned with the provision of the *Cyber Security Ordinance, 2024*.
- (c) A code of conduct for political parties, similar to the 1990 Three-Alliance Framework, to be formulated.

8.6 Facilities for Members of Parliament (MP)

- (a) Duty-free vehicles, residential plots, all types of protocols and allowances for MPs to be reviewed and re-determined.
- (b) A 'Member of Parliament Conduct Act' to be enacted, allowing MPs to submit annual asset statements and declare conflicts of interest.
- (c) High Court's judgment in *Anwar Hossain vs. Bangladesh* case, which eliminates MPs' role in local development to be strictly implemented. MPs to be barred from holding any advisory position in local government institutions.
- (d) Special protocols for MPs to be abolished.

8.7 The position of 'Deputy Speaker' to be given to the opposition.

9.0 Women's participation in parliamentary elections

- (a) The number of seats in the Parliament (lower house) to be increased by 100, making the total 400. A rotational system to be used, requiring 100 seats to be randomly select as reserved seats for women in the first term, another 100 seats to be reserved women in the second term, yet another 100 seats to be reserved for women in the third term, and the remaining 100 seats to be reserved for women in the fourth term. In this way, a woman, based on their competence, will get *directly* elected from each constituency within four terms and will enjoy the same right, authority and privileges like their male counterparts. This will allow competent women to develop their constituencies and get elected competing against women when their seats are no longer reserved, which will eliminate the future need for reserved seats for women.

10.0 Postal Voting System for Expatriates

10.1 Postal Voting System for Expatriates

- (a) An ICT-mediated postal voting system is proposed by the Electoral System Commission to ensure transparency for expatriates. Two potential solutions are suggested in the final report. Any one solution to be selected for implementation.

- (b) To implement the proposed ICT-mediated postal voting system, two mobile applications—"Voter App" and "Verifier App"—to be developed with appropriate functionalities. These applications to be developed for both Android and iOS platforms to ensure accessibility. Additionally, a backend system to be developed for the proposed system.
- (c) Security of the developed mobile applications and the system to be ensured such that the data can be securely transmitted and stored in the database. This to include an access control system and immutable audit trails to ensure database security.
- (d) The proposed system to undergo extensive testing before being used in national elections. A three-phase trial is recommended² to identify and rectify any anomalies, ensuring the system's reliability.
- (e) Continuous security audits of the developed system to be conducted through one or more internationally recognized security audit firms. This will be essential to build trust in the system.
- (f) Training for all individuals involved in the process to be provided to ensure the efficient use of the new system.
- (g) The proposed ICT-mediated voting system to consider also the cases of voters residing in countries without any Bangladeshi consulate. A policy to be developed to designate a consulate as a focal point for such countries.
- (h) To reduce the logistical workload of consulate officials in distributing postal packages to expatriate voters, each postal package to be prepared in Bangladesh and then distributed to consulates. Consulate officials to then use the local postal service in their respective countries to deliver the packages to expatriate voters.
- (i) An effective timeline to be established to complete all activities related to the postal voting, from registration to securely storing election-related ballots in treasury vaults, in all constituencies.
- (j) Although the proposed system is designed for expatriate voters, it may be adapted for domestic absentee voters with minimal modifications. However, concerns about the reliability of the postal service in the country pose a significant challenge. To address this, a reliable courier service capable of tracking postal packages to be used to deliver the packages to voters and later return them to the returning officers.

10.2 Preparation of Voter List for Expatriates

- (a) All Bangladeshi expatriates to be registered in the electoral roll and NID server as soon as possible. All biometric information and recent photographs to be updated during the registration process. Given that the current expatriate registration methods are time-consuming, effective strategies to optimize and accelerate the process to be identified and implemented. Since all Bangladeshi expatriates possess passports, information stored in the passport database to be utilized to expedite the registration.
- (b) If the next national election is to be held in December 2025, expatriates who can be registered in the voter list and NID server by October 2025 to be given the opportunity to vote in the upcoming election through the proposed postal voting system.

11.0 Online Voting System

- (a) As the first step in implementing the proposed online voting system, a technical task force consisting of national and international experts in blockchain, security, cryptography, privacy-enhancing

² The system should initially be trialed in one country with around 50 to 100 expatriate voters. Later, it should be trialed in five to ten countries with 1,000 to 50,000 expatriate voters, and finally, it should be trialed in as many countries as possible with 20,000 or more expatriate voters.

technologies, and online voting to be established. This task force to include relevant domain experts from the Election Commission and other government Ministries and agencies.

(b) As its first responsibility, the proposed task force to design the architecture and protocols for an online voting system following international best practices in software development, as well as to oversee the development of the system³.

(c) Once developed, the system to be thoroughly tested to ensure its functionality, security, and usability.

(d) The system to undergo continuous security audits by one or more internationally recognized security audit firms, essential in building trust in the system.

(e) Trust in the developed system is to be further enhanced through publishing its source code. Public penetration testing may be conducted, and a bug bounty program may be launched to identify serious security and privacy vulnerabilities in the system.

(f) To launch a secure online voting system, amendments to the country's legal framework to be undertaken based on an analysis of various existing legal frameworks.

(g) To gain public trust, continuous opportunities to be provided for the public to use the online voting system, thereby allowing people to accumulate positive experiences. A trial of the system to be conducted in a small-scale election initially, so that the public can gradually gain trust in the system. The success of these trials could serve as an ideal catalyst for widespread adoption.

(h) While designing such a system, consideration to be given to voters who do not own smartphones. For this group, an alternative system to be created to allow them to vote online through other methods.

12.0 Electoral Offenses

(a) The proposed Election Commission Act to have provisions to ensure that offenses or irregularities committed by the Election Commission to be brought to justice.

(b) *Representation of the People's Order, 1972 (Section 89)* to be amended to allow preliminary investigations against government officials accused of committing or abetting electoral offenses (while the provision requiring Elections Commission's permission to file cases per se may be retained).

(c) The statute of limitation for filing cases under *Sections 73 and 74 of the Representation of the People Order, 1972* to be abolished.

(d) A time limit to be set for the disposal of electoral offense cases to expedite the length of adjudication and ensure timely justice.

(e) A 'Special Inquiry Commission' to be formed to investigate accusation of election fraud in 2018.

13.0 Electoral Adjudication and Dispute Resolution

(a) In each constituency during elections, a new body, the 'Electoral Enquiry and Adjudication Committee,' to be formed to both investigate and adjudicate complaints, replacing the existing 'Electoral Enquiry Committee'.

(b) First-Class Judicial Magistrates (those that adjudicate electoral offenses through summary trial only during 5 days – 2 days prior to and after elections and the election day) to be appointed as a members of

³ A joint project could be initiated involving multiple Bangladeshi universities, software vendors, and government agencies, which will help enhance technological capabilities within the country. If necessary, other countries with advanced online voting systems could be included as international partners in the project.

the Electoral Enquiry and Adjudication Committee to take cognizance of offenses for trial under Section 190 of the Criminal Procedure Code.

(c) An 'Electoral Enquiry and Adjudication Supervisory Committee,' chaired by an Election Commissioner, to be established at the Election Commission to monitor activities of the Electoral Enquiry and Adjudication Committees.

(d) While the Electoral Enquiry and Adjudication Supervisory Committee is to exercise authority for the purposes of coordination and accountability, the individual committees will remain independent in their judicial decision-making process.

(e) A 'Parliamentary Election Tribunal' to be established at the district level to handle election dispute cases (election petitions) expeditiously, reducing pressure on the High Court Division. An appeal to the High Court to be available against the decisions of the tribunal.

14.0 Election Observation

(a) Stationary observation to be allowed to ensure observers may remain at the designated polling centers throughout election day; however time inside polling booths to be limited to allow voters their voting privacy.

(b) Official permission to be granted to observer organizations for pre-election observation.

(c) Fake and biased observers to be banned.

(d) Appointment of individual observers to be allowed.

(e) Election observation reports to be used to improve future elections.

(f) The appointment and engagement process for international observers to be made clear; observers to be appointed at the discretion of the Election Commission, not the government.

(g) Journalists with valid election commission-issued cards to be allowed to enter polling stations to document irregularities, and they be allowed to use motorcycles on election day.

15.0 Representative Recall

15.1 'Recall' provisions to be in place for Members of Parliament.

16.0 Election Expenses

(a) Election expenditure to be capped at BDT 10 per voter per parliamentary constituency.

(b) All election expenses to be processed through banking systems or financial technology platforms (e.g., Bikash, Rocket).

(c) To maintain close oversight on election expenditures of candidates and political parties, the Election Commission to set up 'election expenditure monitoring committees' at the constituency levels.

(d) Election expenditures filed by candidates and political parties to be subjected to auditing, the candidates' election to be annulled in case of discrepancies.

(e) All election related expenses of the Election Commission to be a charge on the consolidated budget of the Republic.

17.0 Referendum

17.1 Provisions for Referendum to be included in the law.

18.0 Local Government Elections

- (a) A permanent 'Local Government Commission' to be formed.
- (b) Local government elections to be held before the national election.
- (c) The local government elections to be non-partisan and the relevant laws to be amended accordingly
- (d) Mayors/Chairs and Councilors/Members of local government bodies to be elected directly, rather than indirectly; Councilors/Members to have a meaningful roles in decision-making within their respective local government bodies.
- (e) Women from reserved seats to be elected on a rotational system at all local government bodies.
- (f) School and college teachers receiving MPOs from the government are to refrain from joining any political party or contesting in local and national elections.
- (g) Information contained in affidavits to be made public so that voters are able to make informed decisions in polling booths.
- (h) Elections for the District Councils of Hill districts to be organized forth with.
- (i) Thirty percent of the national budget to be allocated to local government institutions.

END